

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

ORDER NO. 13: DENYING LEAVE TO MOVE TO STRIKE

(August 21, 2026)

In correspondence submitted but not yet filed, complainant Samsung seeks leave to move to strike portions of the rebuttal report of Dr. Bobak Mortazavi, an expert for respondent Oura. Samsung Letter. According to Samsung, Dr. Mortazavi’s rebuttal report on non-infringement presents “new theories and evidence of how the Oura Ring Gen 1 (‘Ring 1’) is alleged to invalidate the asserted claims of” two of the asserted patents “and should be stricken.” *Id.* at 1–3. Oura responds that it “will not rely on Dr. Mortazavi’s rebuttal report for support for any invalidity theory that he offers” and “has explicitly cabined all expert invalidity theories that it will be offering at the evidentiary hearing to those in Dr. Mortazavi’s initial report.” Oura Letter at 2.

Because Oura represents that it will not use Dr. Mortazavi’s rebuttal report on non-infringement to support any argument on invalidity, Samsung has not shown that the report will cause it prejudice. If, at the evidentiary hearing, Samsung believes Oura is improperly introducing material from the challenged portions of Dr. Mortazavi’s rebuttal report, it should object on those grounds. If Samsung objects to Dr. Mortazavi’s hearing testimony on invalidity as beyond the scope of his expert report, Oura may identify support in Dr. Mortazavi’s initial expert report on invalidity.

Samsung's request for leave to move to strike is thus DENIED, without prejudice to Samsung raising objections at the evidentiary hearing. The parties are ordered to file, within three business days of this order, the letters and exhibits that they submitted to the undersigned on August 18 and 19.

SO ORDERED.



Doris Johnson Hines
Administrative Law Judge